

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

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**Index No.:****MARGARET BROCKMAN****Date Purchased:**

Plaintiff,

**Date Filed:**

– against –

**SUMMONS****CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, DETECTIVE DONNANARUE NAZZA,  
POLICE OFFICER JOHN DOE and POLICE OFFICER  
JOHN ROE**Plaintiff designates Kings County as the  
place of trial. The basis of venue is the  
action arose in Kings County.

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Defendant(s).

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**TO THE ABOVE NAMED DEFENDANTS:**

**YOU ARE HEREBY SUMMONED** to answer the Verified Complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of the summons, exclusive of the day of service or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within Verified Complaint.

Date: New York, New York  
December 16, 2013**NEIL WOLLERSTEIN, ESQ.**Attorney for Plaintiff  
59 Maiden Lane, 17<sup>th</sup> Floor  
New York, NY 10038  
(212) 412-4705  
File No.: NW- 548

TO: MICHAEL A. CARDOZO, ESQ.  
Corporation Counsel of City Of New York  
100 Church Street  
New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, NY 10038

DETECTIVE DONNANARUE NAZZA (Shield No. 2126)  
New York City Police Department  
72<sup>nd</sup> Precinct  
830 Fourth Avenue  
Brooklyn, NY 11230

POLICE OFFICER JOHN DOE  
New York City Police Department  
1 Police Plaza  
New York, NY 10038

POLICE OFFICER JOHN ROE  
New York City Police Department  
1 Police Plaza  
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS**

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**MARGARET BROCKMAN**

**INDEX NO.:**

Plaintiff,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, DETECTIVE DONNANARUE NAZZA,  
POLICE OFFICER JOHN DOE and POLICE OFFICER  
JOHN ROE**

**VERIFIED COMPLAINT**

Defendant(s).

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Plaintiff, by her attorney, **NEIL WOLLERSTEIN, ESQ.**, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

1. That at all times the Plaintiff **MARGARET BROCKMAN** was and is a resident of Bronx County, State of New.
2. That at all times hereinafter mentioned, the defendant, CITY OF NEW YORK, hereinafter referred to as “CITY”, was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT, hereinafter referred to as “NYPD”, was and is an agency of the defendant, CITY.
4. That on and prior to 3/12/13 and at all times hereinafter mentioned the defendant, DETECTIVE DONNANARUE NAZZA (Shield No. 2126), hereinafter referred to as “NAZZA” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.
5. That on and prior to 3/12/13 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN DOE, hereinafter referred to as “DOE” was and is a police officer

employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

6. That on and prior to 3/12/13 and at all times hereinafter mentioned the defendant, POLICE OFFICER JOHN ROE, hereinafter referred to as “ROE” was and is a police officer employed by the defendant NYPD, and at all times herein was acting in such capacity as the agent, servant and employee of the CITY and NYPD.

7. Upon information and belief, at all times hereinafter mentioned, and on 3/12/13, at approximately 9:30 a.m., several police officers including but not limited to NAZZA, DOE and ROE were on duty and in the vicinity of 830 Fourth Avenue, County of Kings, City and State of New York.

8. Upon information and belief, at all times hereinafter mentioned, and on 3/12/13, at approximately 9:30 a.m., the above mentioned Police Officers were acting within the scope of their employment and under the direction of the CITY and NYPD as its agents, servants and/or employees.

9. Upon information and belief, defendants NAZZA, DOE and ROE were all assigned to the 72<sup>nd</sup> Precinct.

10. That on and prior to 3/12/13 NAZZA, DOE and ROE were each individually hired, screened, tested, interviewed, trained, retrained, investigated, monitored and supervised by the CITY and NYPD.

11. That on and prior to 3/12/13, at approximately 9:30 a.m., and all relevant times herein after, NAZZA, DOE and ROE individually and/or collectively were acting pursuant to and under the rules and regulations of the New York City Patrol Guidelines.

12. That on 3/12/13, at approximately, 9:30 a.m., Plaintiff **MARGARET BROCKMAN**

was lawfully in the vicinity of 830 Fourth Avenue, County of Kings, State of New York and doing nothing illegal, improper or acting suspicious in anyway.

13. That on 3/12/13, at approximately, 9:30 a.m., in the vicinity of 830 Fourth Avenue, County of Kings, State of New York, NAZZA, DOE and ROE, absent an arrest warrant, probable cause, reasonable cause or any legal justification, approached Plaintiff **MARGARET BROCKMAN** for no reason and summarily stopped, searched, grabbed, assaulted, battered, and detained her in an aggressive and excessive manner.

14. Upon information and belief NAZZA, DOE and ROE knew or had reason to know that their actions lacked any legal justification in approaching, searching, seizing and arresting Plaintiff **MARGARET BROCKMAN**.

15. Upon information and belief, Plaintiff **MARGARET BROCKMAN** was subjected to a strip search while in the custody of defendants without any legal reason or justification.

16. That Plaintiff **MARGARET BROCKMAN** was arraigned after her arrest and thereafter falsely and maliciously prosecuted with committing the crime of Endangering the Welfare of an Incompetent or Physically Disabled Person in the First Degree.

17. Thereafter, Plaintiff **MARGARET BROCKMAN** remained incarcerated for over 24 hours and was required to make numerous court appearances over an extended period of time until all charges against her were summarily dismissed by the District Attorney's Office on or about 5/30/13.

18. Plaintiff **MARGARET BROCKMAN** sustained physical and emotional pain and injuries as a result of this incident.

19. That within ninety (90) days after the causes of actions accrued herein, and more than thirty (30) days prior to the commencement of this action, the Plaintiff **MARGARET**

**BROCKMAN** caused the notice of claim, in writing, sworn to by and on behalf of the claimants, the Plaintiff herein, containing the statement of the name and place of residence of the claimants by the street and number and their attorney, and describing the time when the particular claim and circumstances under which the damages and injuries were sustained, the cause thereof, and so far as practical, the nature and extent of the injuries to be personally served upon the defendant CITY, their agents, servants and/or employees at the Law Department,

20. This action was so commenced within one (1) year and ninety (90) days after said cause of action accrued herein, and for more than thirty (30) days prior to the commencement of this action, defendant CITY neglected, refused and failed to make an adjustment of said claim, and said claim remains unadjusted and unpaid, although plaintiff herein has requested and demanded that the same be paid and adjusted.

21. That the defendants requested an oral examination pursuant to General Municipal Law Section 50-H and said request was complied with.

**AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF**  
**PLAINTIFF MARGARET BROCKMAN**

22. Plaintiff **MARGARET BROCKMAN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 21 with the same force and effect as if fully set forth at length herein.

23. That on or about 3/12/13, at approximately 9:30 a.m., the Plaintiff **MARGARET BROCKMAN** was without just cause, probable cause or provocation, and with reckless, negligent and callous disregard for the truth, and without investigation, touched, grabbed, handcuffed, seized and arrested in an excessive manner and with excessive force by CITY, NYPD, NAZZA, DOE and ROE, their agents, servants and/or employees, and in particular, by NAZZA, DOE and ROE.

24. That on or about 3/12/13, at approximately 9:30 a.m., the Plaintiff **MARGARET BROCKMAN** while lawfully in the vicinity of 830 Fourth Avenue, County of Kings, City and State of New York, was without just cause, probable cause or provocation, maliciously, intentionally and falsely accused by CITY, NYPD, NAZZA, DOE and ROE of having committed the crime of Endangering the Welfare of an Incompetent or Physically Disabled Person in the First Degree.

25. That on or about 3/12/13, and upon arresting the Plaintiff **MARGARET BROCKMAN** and depriving her of her liberty, CITY, NYPD, NAZZA, DOE and ROE took the Plaintiff **MARGARET BROCKMAN** to a police station in the County of Kings and entered her on the records as under arrest.

26. That on or about 3/12/13, the CITY, NYPD, NAZZA, DOE and ROE further caused Plaintiff **MARGARET BROCKMAN** to have her fingerprints and photographs to be taken without his consent and in accordance with police procedures for the arrest of criminals and held her on various criminal charges at various police stations, correctional facilities and at the Courthouse located in the County of Kings, City and State of New York.

27. That on or about 3/12/13 Plaintiff **MARGARET BROCKMAN** was aware of her arrest and confinement, she did not consent to her arrest or confinement, and said confinement, seizure, arrest and detention was without legal justification.

28. That at all times hereinafter mentioned the actions of CITY, NYPD, NAZZA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

29. That by reason of the foregoing, Plaintiff **MARGARET BROCKMAN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF**  
**PLAINTIFF MARGARET BROCKMAN**

30. Plaintiff **MARGARET BROCKMAN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 29 with the same force and effect as if fully set forth at length herein.

31. That on or about 3/12/13, a criminal complaint was issued by the CITY, NYPD, NAZZA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

32. That on or about 3/12/13 a criminal action against Plaintiff **MARGARET BROCKMAN** was commenced by CITY, NYPD, NAZZA, DOE and ROE, their agents, servants and/or employees, without probable cause, reasonable cause or legal justification.

33. That solely as a result of the aforesaid, the Plaintiff **MARGARET BROCKMAN'S** life was interfered with.

34. That the criminal action against Plaintiff **MARGARET BROCKMAN** was continued for an extended period of time by defendants with malice and bad faith.

35. That solely as a result of the false arrest, assault, battery, false imprisonment and malicious prosecution of the Plaintiff **MARGARET BROCKMAN**, she was deprived of her liberty for an extended period of time and was subjected to scorn, ridicule, embarrassment and was degraded in the esteem of the community both personally and professionally.

36. That on or about 5/30/13 the criminal action against Plaintiff **MARGARET BROCKMAN** was terminated favorably by dismissal.

37. That the actions of CITY, NYPD, NAZZA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.



38. That by reason of the foregoing, Plaintiff **MARGARET BROCKMAN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF**  
**PLAINTIFF MARGARET BROCKMAN**

39. Plaintiff **MARGARET BROCKMAN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 38 with the same force and effect as if fully set forth at length herein.

40. That on or about 3/12/13, and while in the custody of the defendants in the County of Bronx, City of New York, the Plaintiff **MARGARET BROCKMAN** was intentionally touched, pushed, assaulted, battered, violated, strip searched, humiliated, photographed and handcuffed by the CITY, NYPD, NAZZA, DOE and ROE, who were acting within the scope of their employment and authority in such a manner as to knowingly cause injury to plaintiff.

41. That on or about 3/12/13 CITY, NYPD, NAZZA, DOE and ROE, their agents, servants and employees, acting as agents and on behalf of the CITY, NYPD, NAZZA, DOE and ROE, within the scope of their employment, did intentionally, willfully and maliciously assault and batter the Plaintiff **MARGARET BROCKMAN** in that they have the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff **MARGARET BROCKMAN** and their act caused apprehension of such contact in the plaintiff, and in a hostile and/or offensive manner touched and beat the plaintiff and/or offensive bodily contact to the Plaintiff **MARGARET BROCKMAN** and caused such battery in and about her head, neck, back, body and limbs.

42. That by reason of the aforesaid intentional assault and battery which was committed in an excessive manner and with excessive force and without legal justification or privilege by the

defendants, their agents, servants and employees, who were acting within the scope of their employment and authority and without any probable or reasonable cause, Plaintiff **MARGARET BROCKMAN** suffered great and permanent bodily injury in and about his head, neck, back, body and limbs and was rendered sick, sore, lame and disabled, and suffered conscious pain and suffering, and that she was otherwise damaged.

43. That as a result of the aforesaid assault and battery the Plaintiff **MARGARET BROCKMAN** was caused to sustain serious, severe, painful and permanent bodily injuries so that she was rendered sick, sore, lame and disabled and so remains and was and will be compelled to seek medical aid and attention and incur expenses for same in an endeavor to cure herself of her said injuries and she was and will be prevented from attending his usual occupation and duties.

44. That at all times hereinafter mentioned the actions of CITY, NYPD, NAZZA, DOE and ROE as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

45. That by reason of the foregoing, Plaintiff **MARGARET BROCKMAN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF**  
**PLAINTIFF MARGARET BROCKMAN**

46. Plaintiff **MARGARET BROCKMAN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 – 45 with the same force and effect as if fully set forth at length herein.

47. That the CITY, NYPD, their agents, servants and employees were negligent, careless and reckless in hiring, retaining, training, monitoring, retraining, supervising and promoting its employees including but not limited to NAZZA, DOE and ROE, in that said police officers, as

employees of CITY and NYPD, were not qualified to be hired or retained or promoted as police officers, lacked the experience, skill, training and ability to be employed, retained and utilized in the manner that each was employed by CITY and NYPD.

48. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately test, analyze test results, and/or investigate above mentioned police officers backgrounds and performances.

49. That the CITY and NYPD failed to exercise due care and caution in its hiring, retaining, training and/or promoting practices in that CITY and NYPD failed to adequately screen said police officers, failed to adequately monitor said police officers, and failed to adequately discipline said police officers when they violate Patrol Guidelines.

50. Defendant CITY and NYPD were also negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the police officer defendants named herein, knew or should have known of the bad disposition of said defendants, or at the very least had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that defendant police officers were not suitable to be hired and employed by the CITY and NYPD and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

51. That by reason of the above, the Plaintiff **MARGARET BROCKMAN** was injured in mind and body as she was arrested, prosecuted and rendered sick, sore, and damaged.

52. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and

grossly negligent manner.

53. That by reason of the foregoing, Plaintiff **MARGARET BROCKMAN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF**  
**PLAINTIFF MARGARET BROCKMAN**

54. Plaintiff **MARGARET BROCKMAN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1-53 with the same force and effect as if fully set forth at length herein.

55. In arresting Plaintiff **MARGARET BROCKMAN**, police officers including but not limited to NAZZA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, were motivated by an ulterior purpose to do harm, without justification or economic or social excuse.

56. In arresting Plaintiff **MARGARET BROCKMAN**, police officers including but not limited to NAZZA, DOE and ROE, acting in their capacity as agents, servants and employees of CITY and NYPD, sought either a detriment to Plaintiff **MARGARET BROCKMAN** or a collateral advantage to the CITY and NYPD that is outside the legitimate ends of effectuating an arrest.

57. As a result of the abuse of process by defendants herein, Plaintiff **MARGARET BROCKMAN** sustained multiple injuries including but not limited to loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

58. That at all times hereinafter mentioned the actions of CITY, NYPD and all defendants herein as described above were carried out in a reckless, deliberate, willful, wanton, malicious and grossly negligent manner.

59. That by reason of the foregoing, Plaintiff **MARGARET BROCKMAN** has been

damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**AS AND FOR A SIXTH CAUSE OF ACTION ON BEHALF OF**  
**PLAINTIFF MARGARET BROCKMAN**

60. Plaintiff **MARGARET BROCKMAN** repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 - 59 with the same force and effect as if fully set forth at length herein.

61. At all times mentioned herein and above, defendants CITY and NYPD employed NAZZA, DOE and ROE as police officers and named defendants were acting under color of law, to wit: the statutes, ordinances and regulations, policies and customs and usage of the State of New York and/or City of New York.

62. Plaintiff **MARGARET BROCKMAN** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.

63. That on or about 3/12/13, defendants CITY, NYPD, NAZZA, DOE and ROE without probable cause, reasonable cause or legal justification and while effectuating the seizure of plaintiff **MARGARET BROCKMAN**, did search, seize, assault and commit a battery and grab the Plaintiff **MARGARET BROCKMAN** without a court authorized arrest warrant or search warrant and defendants did physically seize Plaintiff **MARGARET BROCKMAN** during the arrest process in an unlawful and excessive manner. Plaintiff **MARGARET BROCKMAN** was falsely arrested, unlawfully imprisoned and strip searched and as a result of defendants' conduct maliciously prosecuted without the defendants possessing probable cause, reasonable cause or legal justification to do so.

64. The above actions of defendants CITY, NYPD, NAZZA, DOE and ROE and ROE

resulted in Plaintiff **MARGARET BROCKMAN** being deprived of the following rights under the United States Constitution: a) Freedom from assault to his person; b) Freedom from battery to his person; c) Freedom from illegal search and seizure; d) Freedom from false arrest; e) Freedom from malicious prosecution; f) Freedom from the use of excessive force during the arrest process; and g) The right to Due Process of Law.

65. In addition to the above, defendants CITY and NYPD have as a matter of policy, custom and practice and with deliberate indifference failed to adequately train, monitor, supervise, discipline, sanction or otherwise direct its police officers, including the officers involved in this case and any and all unnamed officers involved in the unlawful seizure and arrest of plaintiff, regarding the protection of the constitutional rights of citizens.

66. Defendants CITY, NYPD, NAZZA, DOE and ROE subjected Plaintiff **MARGARET BROCKMAN** to such deprivation in a malicious, reckless, deliberate, intentional, grossly negligent and with a callous disregard of Plaintiff **MARGARET BROCKMAN'S** rights and with deliberate indifference to those rights under the Fourth, Fifth, Sixth, Fourteenth and all other related Amendments to the United States Constitution.

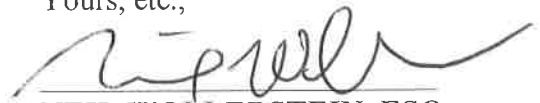
67. The direct and proximate result of the defendants CITY, NYPD, NAZZA, DOE and ROE acts are that Plaintiff **MARGARET BROCKMAN** has suffered severe and permanent injuries, loss of liberty and companionship, forced to endure pain and suffering, emotional distress and severe and significant damage to standing and reputation in the community.

68. That by reason of the foregoing, Plaintiff **MARGARET BROCKMAN** has been damaged in an amount that exceeds the jurisdictional limits of all lower trial courts of this state.

**WHEREFORE**, the Plaintiff **MARGARET BROCKMAN** demands judgment against the defendants on the First Cause of Action through the Sixth Cause of Action in a sum that exceeds the jurisdictional limits of all lower trial courts of this state for each cause of action, all together with attorney's fees, punitive damages and the costs and disbursements of this action.

Dated: New York, New York  
December 16, 2013

Yours, etc.,

A handwritten signature in dark ink, appearing to read 'Neil Wollerstein', written over a horizontal line.

**NEIL WOLLERSTEIN, ESQ.**

Attorney for Plaintiff  
59 Maiden Lane, 17<sup>th</sup> Floor  
New York, NY 10038  
(212) 412-4705  
File No.: NW-548

**ATTORNEY VERIFICATION**

**NEIL WOLLERSTEIN**, an attorney duly admitted to practice before the courts of the State of New York affirms the following to be true pursuant to CPLR 2106 and under the penalties of perjury:

1. The undersigned, an attorney admitted to practice in the Courts of the State of New York states that he is retained on behalf of plaintiff **MARGARET BROCKMAN**.
2. That affirmant has read the foregoing **SUMMONS and VERIFIED COMPLAINT** and knows the contents thereof; that the same is true to affirmant's own knowledge except as to the matters therein stated to be alleged on information and belief; and that as to those matters affirmant believes them to be true.
3. Your affirmant further says that the reason this verification is made by affirmant and not the plaintiff is that the plaintiff is not within the County of New York where affirmant maintains his office.

Dated: New York, New York  
December 16, 2013

  
**NEIL WOLLERSTEIN**



SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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**MARGARET BROCKMAN**

Plaintiff,

– against –

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, DETECTIVE  
DONNANARUE NAZZA, POLICE OFFICER JOHN DOE and POLICE OFFICER JOHN  
ROE**

Defendant(s).

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**SUMMONS AND VERIFIED COMPLAINT**

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**NEIL WOLLERSTEIN, ESQ.**

Attorney for Plaintiff  
59 Maiden Lane, 17<sup>th</sup> Floor  
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Tel: (212) 412-4705  
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File No.: NW-548